



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 13065
(THIRD REVISION)

AUG 21 2003

EXPIRATION DATE: February 28, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Mazda North American Operations
Irvine, CA
(Former grantee: North American Automotive Hazmat
Action Committee (NAAHAC) and its members)
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the transportation in commerce of Class 9 Air bag inflators, Air bag modules and Seat-belt pretensioners using an abbreviated EX number on shipping papers. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: The marking requirement specified in §§ 172.203(a) and 172.301(c); § 173.166(c) in that an abbreviated EX number is not authorized to be marked on shipping papers except as specified herein.
5. BASIS: This emergency exemption is based on the application of the Mazda North American Operations dated August 19, 2003, submitted in accordance with § 107.117 and a determination that is necessary to prevent significant economic loss.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

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Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Air bag inflators, pyrotechnic or Air bag modules, pyrotechnic or Seat-belt pretensioner, pyrotechnic	9	UN3268	III

7. SAFETY CONTROL MEASURES: All classification, packaging and hazard communication must meet the requirements of the HMR except as provided in paragraph 8.a. below.

8. SPECIAL PROVISIONS:

a. Each shipping paper must be noted with the EX number associated with the description except that the EX number may be abbreviated by eliminating the first, second and seventh (if a zero) digits (e.g., "EX2002040275" may be abbreviated "0204275").

b. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

c. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

d. The marking requirements of §§ 172.203(a) and 172.301(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only, and passenger-carrying aircraft.

10. MODAL REQUIREMENTS: None as a requirement of this exemption.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

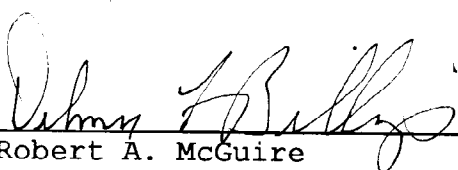
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:


for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: sln